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Case Number: 26SMCV00127 Hearing Date: August 21, 2026 Dept: M

CASE NAME: 15515 Sunset

Blvd LLC, v. the Via de la Paz Association, et al.

CASE NO.: 26SMCV00127

MOTION: Motion

for Preliminary Injunction

HEARING DATE: 8/21/2026

Legal

Standard

Under Code of Civil Procedure ("CCP")

section 526(a), a preliminary injunction may be issued in the following cases:

1)

When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually.

2)

When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.

3)

When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual.

4) When pecuniary compensation would not afford adequate relief.

5)

Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief.

6)

Where the restraint is necessary to prevent a multiplicity of judicial proceedings.

7) Where the obligation arises from a trust.

In determining whether to issue a preliminary injunction, the trial court considers two factors: 1) the reasonable probability that the plaintiff will prevail on the merits at trial (CCP §526(a)(1)); and 2) a balancing of the “irreparable harm” that the moving party is likely to sustain if the injunction is denied compared to the harm that the non-moving party is likely to suffer if the court grants a preliminary injunction. (CCP §526(a)(2); 14859 Moorpark Homeowner’s Assn. v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402.) “A preliminary injunction is an interim remedy designed to maintain the status quo pending a decision on the merits.” (Major v. Miraverde Homeowners Assn. (1992) 7 Cal.App.4th 618, 623.) “[A] cause of action must exist before injunctive relief may be granted.” (Id. (citing Shell Oil Co. v. Richter (1942) 52 Cal.App.2d 164, 168).) “[T]he general rule is that an injunction is prohibitory if it requires a person to refrain from a particular act and mandatory if it compels performance of an affirmative act that changes the position of the parties.” (Davenport v. Blue Cross of California, (1997) 52 Cal.App.4th 435, 446.) Courts are generally more “reluctant” to issue a mandatory injunction, even if they may be granted in proper cases, and subject to stricter scrutiny on review. (Allen v. Stowell, (1905) 145 Cal. 666, 669; Teachers Ins. & Annuity Assn. v. Furlotti, (1999) 70 Cal.App.4th

1487, 1493.)

The court's ruling on a preliminary injunction is not an adjudication of the merits, is not a trial, and does not require a statement of decision. (Cohen v. Board of Supervisors, (1985) 40 Cal.3d 277, 286.) The judge is not required to state her reasons for granting or denying a preliminary injunction; a cursory statement is sufficient. (City of Los Altos v. Barnes, (1992) 3 Cal.App.4th 1193, 1198.) A proposed order must be presented to the judge for signature, with any required undertaking, within one day after the preliminary injunction is granted, or other time ordered by the judge. (CRC 3.1150(f).)

Analysis

Plaintiff 15515 Sunset Blvd, LLC

moves for a preliminary injunction enjoining Defendants the Via de la Paz Association, Evan Conover, Laurie Nimmo Ramirez, Andrew Frew, Joe Tesoriero, Catherine Dunne, Sophia Silver, Dianne Jones-Longaker, and their officers, agents, employees, attorneys, and all persons acting in concert or participation with them, from:

1. Executing any construction

contract, awarding any construction bid, or entering into any binding financial commitment in excess of \$100,000 in connection with the reconstruction or remediation of the Development pending: (a) receipt of plan-check approval from the Los Angeles Department of Building and Safety ("LADBS") for all structural plans, including completion of the resubmittal LADBS has required to complete its structural review; (b) provision to members of all structural engineering assessments of the Brick Building and the subterranean garage required by LADBS as a condition of plan-check approval; (c) passage of CC&R reinstatement legislation and the conduct of a valid member reinstatement vote achieving approval by not less than 75% of the Association's 107 members; and (d) convening of a special meeting of members pursuant to Corporations Code § 7510(e);

2. Spending, committing, or

encumbering any portion of the approximately \$41 million in insurance proceeds held in trust for the benefit of the Association's 107 members in connection with reconstruction or remediation of the Development, except for reasonable interim

maintenance and safety expenditures not exceeding \$100,000

in the aggregate, pending the relief

described in paragraph 1 above; and

3. Proceeding with remediation or reconstruction of the Brick Building at 15515 W Sunset Blvd, Pacific Palisades, without first: (a) completing a full structural and seismic analysis of the Brick Building as required by LADBS under LAEBC Section 502; (b) completing a seismic separation analysis between the Brick Building and the proposed new construction at each floor level as required by LADBS; and (c) disclosing all structural engineering assessments, LADBS plan-check comments, and post-fire remediation plans to all members.

Oversized Opposition

Plaintiff

objects to the opposition memo on the grounds that the memorandum is greater than 15 pages in length. (CRC Rule 3.1113(d).) The Court will only consider the first 15 pages of the opposition memorandum.

Request for Judicial Notice

Plaintiff's request for judicial notice in reply is GRANTED.

Defendants' Authority; Reinstatement of the CC&Rs

The proposed injunction would require Defendants to reinstate the CC&Rs before entering into a contract for, or proceeding with remediation/reconstruction efforts of the Development and/or the Brick Building. This injunction request is made pursuant to the FAC's claims for breach of fiduciary duty, negligence, fraud and ultra vires acts. (FAC ¶¶ 56, 62, 64, 75, 83, 86.) These causes of action claim that Defendants unlawfully passed the June 23, 2026, Rebuild Resolution even though the CC&Rs are expired. (FAC ¶¶ 39-43.)

Plaintiff fails to show a likelihood of success on the merits. This portion of the injunction is premised on the assumption that, because the CC&Rs expired, the HOA and Board lack any authority to make decisions concerning the repair efforts. The Court has

consistently found otherwise. Defendants have authority to conduct the affairs of the corporation. The Articles of Incorporation and Bylaws still exist. Under said documents, the Board has the general power to conduct the activities and affairs of the HOA. (Corp. Code § 7210.) Absent constraints placed by the articles or bylaws, this would include the power to assume obligations and enter into contracts. (Corp. Code § 7140(i).) Plaintiff has not shown that those documents are invalid, or that the HOA does not otherwise exist as a cognizable entity. Plaintiff does not demonstrate that the challenged Rebuild Resolution is outside the Board's authority to manage corporate affairs, or otherwise contradicts the bylaws and/or articles. Plaintiff cites Corporations Code section 7238, but this section only applies to funds held in "charitable trusts." While the funds are held in trust, the record does not suggest that the funds are held for a charitable purpose. (See *L.B. Research & Education Foundation v. UCLA Foundation* (2005) 130 Cal.App.4th 171, 177 [defining a charitable trust and charitable purpose].) Moreover, using the insurance proceeds for reconstruction is not a "disposition" of assets within the meaning of section 7238. While Defendants do not have authority as a CID under the Davis Sterling Act, Plaintiff fail to show that the Rebuild Resolution is an ultra vires act that the court may enjoin. (See *Butt v. State of California* (1992) 4 Cal.4th 668, 677-678 [a court may enjoin ongoing ultra vires conduct which risks irreparable injury].) Therefore, the Court will not require the CC&Rs be reinstated before Defendants may proceed with a contract or the rebuilding efforts.

LADBS Plan-Check Approval, Structural Engineering Assessments

Next,

Plaintiff requests an injunction that Defendants must complete the LADBS structural review and receive a plan-check approval before entering into a contract for, or proceeding with remediation/reconstruction efforts of the Development and/or the Brick Building. Plaintiff explains that LADBS has required the architectural plans to be resubmitted for structural deficiencies, while the Board is preparing to sign contracts for a \$33.6 million construction project. (May Decl. ¶¶ 11-13, Ex. P, 119.) Plaintiff asserts that gravity calculations are missing for an entire wing, seismic design plans are missing for both wings, and that the plans lack a structural analysis of the Brick Building which is required for LADBS approval under LAEBC Section 502. Plaintiff believes that executing the construction contract based on plans that cannot support a building permit would waste the trust funds. In reply,

Plaintiff notes that on July 17, 2026, LADBS issued an Order to Comply, requiring Defendants to comply with the City's mandatory non-ductile concrete retrofit ordinance for the Brick Building, including submission of a structural evaluation of the building. (Suppl. May Decl. ¶ 3, Ex. R.)

Plaintiff fails to show a probability of success on the merits or a risk of imminent, irreparable harm concerning the signing of any construction contract or commencement of construction. Defendants submit evidence that the plan-check correction letters are a standard, expected, and routine part of every major construction permit application in the City of Los Angeles. (Spitzer Decl., ¶ 7.) This is consistent with the Court's experience in construction actions. Every architect and structural engineer should expect to receive correction letters before a plan is approved. The fact that LADBS has issued an order to comply does not demonstrate that Defendants are engaging in fraud or bad faith justifying overriding the Board's business judgment. (Lauckhart v. El Macero Homeowners Assn. (2023) 92 Cal.App.5th 889.) Defendants also present evidence that they are conducting due diligence with the General Contractor candidates. (Spitzer Decl., ¶¶ 11-13.) Critically, Defendants are using the entrusted funds for a proper purpose: rebuilding efforts. Plaintiff shows nothing improper, or in breach of trust, for Defendants to use insurance funds to rebuild the insured real property. Additionally, the proposed injunction would simply be redundant with Defendants' obligation to comply with the LADBS orders. While Plaintiff cites various issues brought up by LADBS (See May Decl., ¶¶ 22-26, Exs. M at 103, N at 106, O at 109, L at 100), Plaintiff presents no substantial, non-speculative evidence that Defendants will likely fail to comply with LADBS's order(s) to comply. In all likelihood, Defendants will work with LADBS and any eventual contractor to bring the plans and buildings up to code. (Spitzer Decl., ¶¶ 15-17.) Plaintiff submits various declarations, which each state unspecified concerns regarding the structural stability of the Brick Building and the adequacy of the construction plans. Even if these structural concerns are valid, there is no admissible, substantial evidence that any potential plans will not eventually conform to the code or provide for a safe building. At best, the owners' declaration only show concerns with the transparency of the HOA concerning the plans and the records requests, which will be discussed below.

The Court further finds little to no harm in Defendants securing a contractor prior to LADBS approval. Again, changes in the plans or work orders is common in large construction projects, even after construction begins. (Spitzer Decl., ¶ 12.) Plaintiff presents no

evidence that this would cause irreparable harm. Changes in the plans after retaining a contractor might increase the project costs, but the increased cost would be a purely monetary issue. At worst, if Defendants fail to comply with the LADBS orders, Defendants risk incurring monetary penalties, which will also cause downstream monetary harm to the owners. On the other hand, imposition of the proposed injunction will provide another needless and redundant procedural hurdle which will delay the necessary construction efforts. The harm caused by such a delay will be borne by the homeowners. Thus, the injunction risks extending the owners' continuing displacement from their homes. Delay will also erode the purchasing power of the funds. (Spitzer Decl., ¶ 17.) Accordingly, the harm factors weigh against the imposition of an injunction.

Plaintiff also does not show any impropriety with Defendants' efforts to select a bid. Plaintiff generally lacks information on the bidding process. (May Decl., ¶ 8.) Otherwise, the record suggests that Defendants have undergone a competitive bidding process but have not yet decided on a winning bid.

Additionally, Plaintiff mentions that certain residents have returned to the building, without obtaining any structural assessment and despite notices to not enter. The proposed injunctions would not remedy this issue. Defendants likely have no control over those residents' independent decision to enter the yellow-tagged building at their own risk.

Accordingly, the Court will not issue the requested injunction requiring LADBS approval prior to engaging a contractor or proceeding with remediation/construction efforts.

Convening a Special Meeting (Corp. Code § 7510(e))

Plaintiff also requests an injunction that Defendants must commence a special meeting before entering into a contract for, or proceeding with remediation/reconstruction efforts of the Development and/or the Brick Building.

Corporations Code section 7510(e) states that "[s]pecial meetings of members for any lawful purpose may be called by the board, the chairperson of the board, the president, or such other persons, if any, as are specified in the bylaws. In addition, special

meetings of members for any lawful purpose may be called by 5 percent or more of the members.” (Emphasis Added.)

Corporations Code section 7511(c)

states that “[u]pon request in writing to the corporation addressed to the attention of the chairperson of the board, president, vice president, or secretary by any person (other than the board) entitled to call a special meeting of members, the officer forthwith shall cause notice to be given to the members entitled to vote that a meeting will be held at a time fixed by the board not less than 35 nor more than 90 days after the receipt of the request. If the corporation is a common interest development, as defined in Section 4100 of the Civil Code, the corporation shall cause notice to be given to the members entitled to vote that a meeting will be held at a time fixed by the board not less than 35 nor more than 150 days after receipt of the request. If the notice is not given within 20 days after receipt of the request, the persons entitled to call the meeting may give the notice or the superior court of the proper county shall summarily order the giving of the notice, after notice to the corporation giving it an opportunity to be heard. The court may issue such orders as may be appropriate, including, without limitation, orders designating the time and place of the meeting, the record date for determination of members entitled to vote, and the form of notice.”

Plaintiff demonstrates a reasonable

probability of success under the above sections. The FAC states a valid cause of action under this section. (FAC ¶¶ 21, 34-37, 57, 83, 86.) Plaintiff submits undisputed evidence that on June 15, 2026, more than 5% of the Association's members submitted a written petition to the Board pursuant to Corporations Code § 7510(e). (May Decl., ¶ 3.) Despite more than 20 days elapsing since, no special meeting has been noticed. (Id.) On July 8, 2026, a formal Notice of Default was served on the Board citing this failure. (Id.) If the members comply with the statutory scheme, then the statute directs the court to “summarily order” the giving of the notice. The FAC and the instant motion for injunction substantively comply with the process contemplated by the statute.

Accordingly, the Court will issue a

limited injunction requiring Defendants to notice the convening of a special meeting of members pursuant to Corporations Code sections 7510(e) and 7511(c). The Court does not find cause to condition any contract or commencing any construction on noticing the special meeting. The relative weight of the harms discussed above weigh against such an injunction. The statutory scheme also

does not contemplate conditioning this notice on any other relief. However, the Court will give a more limited order requiring such a meeting in light of the clarity of the statutory duty involved and the harm to Plaintiff, and the other members seeking such a meeting. By ignoring of the notices, the Board would cause irreparable harm to Plaintiff and other members' ownership rights. It would be impossible to repair denial of these rights with only money. The burden on Defendants to give notice of a special meeting and hold the special meeting would be minimal. Thus, a mandatory injunction requiring Defendants to give notice is warranted. In opposition, Defendants do not explain why they have delayed in bringing this meeting. The Court will inquire with counsel at the hearing as to the particulars of the order, including "the time and place of the meeting, the record date for determination of members entitled to vote, and the form of notice." (Corp. Code § 7511(c).) The Court would order the notice be given as soon as possible, since Plaintiff is entitled to a meeting within 90 days after the receipt of the request.

Accordingly,
the motion is GRANTED in part.

Records Request under Corporations Code § 8333

Plaintiff requests an injunction
that Defendants must disclose all structural engineering assessments, LADBS plan-check comments, and post-fire remediation plans to all members, before proceeding with remediation/reconstruction efforts of the Development and/or the Brick Building.

Corporations Code section 8333

states: "The accounting books and records and minutes of proceedings of the members and the board and committees of the board shall be open to inspection upon the written demand on the corporation of any member at any reasonable time, for a purpose reasonably related to such person's interests as a member."

Corporations Code section 8336(a)

states: "Upon refusal of a lawful demand for inspection under this chapter, or a lawful demand pursuant to Section 8330 or Section 8333, the superior court of the proper county, or the county where the books or records in question are kept, may enforce the demand or right of inspection with just and proper conditions or may, for good cause shown, appoint one or more competent inspectors or independent accountants to audit the financial statements kept in

this state and investigate the property, funds and affairs of any corporation and of any subsidiary corporation thereof, domestic or foreign, keeping records in this state and to report thereon in such manner as the court may direct.”

Plaintiff demonstrates a reasonably probability of success on the merits of the section 8333 demand. On June 26, 2026, Plaintiff and co-signing members served a formal demand under section 8333 for structural engineering assessments, LADBS plan-check

documents, contractor bids, cost analyses, and Board committee minutes. (May Decl. ¶ 7, Ex. D, at 32-45.) The Board has produced no records. Defendants’ July 10, 2026, letter confirms the Board declined to produce structural engineering assessments, LADBS plan-check submissions and correspondence, and contractor bids and cost analyses in response to the section 8333 demand. (Id., ¶ 18, Ex. H.) The letter states that the requested documents are not accounting books or records as defined by section 8333, that such documents are protected by the attorney-client privilege, and that they are commercially sensitive. Defendants fail to justify these objections with substantial evidence or authority. The term “record” appears facially broad and would cover any documents in the corporation’s possession. (Corp. Code § 8333, se also § 8320 [defining what records a company must keep].) Defendants do not show that the attorney-client privilege might apply to those documents. By the document’s stated nature, the documents would be nonconfidential communications, provided to Defendants by third parties, and/or shared with third party non-attorneys for non-representation purposes. (Evid. Code § 952; Fireman’s Fund Ins. Co. v. Superior Court (2011) 196 Cal.App.4th 1263, 1274.) Defendants do not cite any authority that a member cannot seek commercially sensitive information via a section 8333 request. All financial documents might be commercially sensitive, and such documents may be obtained via a section 8333 request. Defendants also argue that there is no petition under section 8333. However, the statutory scheme does not contemplate any particular form of action or petition. The instant motion was duly noticed with an injunction concerning the production of documents. Moreover, the recently filed FAC functionally acts as such a petition, since it seeks enforcement of the demand, and was served concurrently with the instant motion.

Accordingly, the Court is inclined to issue a limited injunction requiring Defendants to comply with Plaintiff’s section 8333 demand, including the categories seeking structural engineering

assessments, LADBS plan-check documents, contractor bids and cost analyses. Again, the Court does not otherwise find cause to condition any contract or commencing any construction on the production. The relative weight of the harms discussed above weigh against such an injunction. The statutory scheme also does not contemplate conditioning this notice on any other relief. A more limited injunction is justified in light of the clear statutory duties involved here. The Board's refusal would cause irreparable harm to Plaintiff and other member's ownership rights. It would be impossible to repair denial of these rights with only money. The burden on Defendants to produce would be minimal. At worst, assuming Plaintiff or the other members seeking the documents disclose the bids publicly, there might be a slight increase in the bid prices. But this risk appears remote, since it would be against Plaintiff and the other member's interest to publicly disclose such information. Thus, a mandatory injunction requiring Defendants to produce is warranted.

Accordingly, the motion is GRANTED in part. The Court will order Defendants to produce the sought records to the requesting members within 20 days.

Plaintiff and Defendants to file a joint proposed order consistent with this ruling within five days.